

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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ASHANTI CROSLAND, ANGELA PEAY, YUSUF
CALEB-PEAY, and MALIK CALEB-PEAY,

Plaintiff,

SUMMONS

-against-

Index No.:

THE CITY OF NEW YORK, SERGEANT DANIEL
MOLINSKI, Shield No. 2065, and POLICE OFFICER
JOHN DOES NUMBERS ONE THROUGH TEN,

The Basis of Venue is:
Location of Incident

Defendants.

Plaintiff designates Kings
County as the place of trial.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
April 17, 2020

Yours, etc.



CAITLIN ROBIN, ESQ.
CAITLIN ROBIN AND ASSOCIATES PLLC
Attorney for Plaintiff
30 Broad Street Suite 702
New York, New York 10004
(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

SERGEANT DANIEL MOLINSKI, Shield No. 2065, NYPD PSA 9, 155-9 Jewel
Avenue, Queens, New York 11367

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
ASHANTI CROSLAND, ANGELA PEAY, YUSUF
CALEB-PEAY, and MALIK CALEB-PEAY,

INDEX NO.:

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, DETECTIVE DANIEL
MOLINSKI, Shield No. 205, and POLICE OFFICER
JOHN DOES NUMBERS ONE THROUGH TEN,

JURY TRIAL DEMANDED

Defendants.
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Plaintiffs ASHANTI CROSLAND, ANGELA PEAY, YUSUF CALEB-PEAY, and MALIK CALEB-PEAY, by their attorneys, Caitlin Robin & Associates, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On June 21, 2019, at approximately 5:00 p.m., all four Plaintiffs, while inside 343 Miller Avenue, Brooklyn, New York, were subject to an unlawful search, false arrest, and false imprisonment by the defendant New York City police officers. Plaintiffs were maliciously prosecuted and denied the right to due process and a fair trial until all charges against plaintiffs were dismissed and sealed in their entirety on or about November 14, 2019. Plaintiffs were deprived of their constitutional and common law rights when the individual defendants unlawfully searched, confined, falsely arrested, falsely imprisoned, maliciously prosecuted, and denied plaintiff the right to due process and a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff ASHANTI CROSLAND is a resident of the state of New York.

3. Plaintiff ANGELA PEAY is a resident of the state of New York.

4. Plaintiff YUSUF CALEB-PEAY is a resident of the state of New York.

5. Plaintiff MALIK CALEB-PEAY is a resident of the state of New York.

6. SERGEANT DANIEL MOLINSKI, Shield No. 2065, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. SERGEANT DANIEL MOLINSKI, Shield No. 2065, was at all times relevant herein, assigned to the 75th Precinct.

8. SERGEANT DANIEL MOLINSKI, Shield No. 2065, is being sued in his individual and official capacity.

9. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

10. Police Officer John Does Does #1-10 are being sued in their individual and official capacities.

11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

12. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a Police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

13. The Plaintiffs in furtherance of their causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

14. In accordance with New York State law and General Municipal Law Section 50, the plaintiffs testified at a hearing held pursuant to General Municipal Law Section 50-H.

15. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

16. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

17. The Plaintiffs have sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

18. On June 21, 2019, at approximately 5:00 P.M., the Plaintiffs were lawfully present inside an apartment at 343 Miller Avenue, in Brooklyn, New York, when the defendant police officers unlawfully handcuffed and falsely arrested the Plaintiffs without probable cause, or any legal justification.

19. The Plaintiffs, Ashanti Crosland, Malik Caleb-Peay, and Yusuf Caleb-Peay, were lawfully present inside Apt #3 at 343 Miller Avenue, in Brooklyn, New York.

20. These three Plaintiffs were watching a movie on Netflix when Defendant Officers broke down the apartment door without permission or authority.

21. Approximately ten defendant police officers pointed guns in the faces of all three of the Plaintiffs.

22. Defendant Officers handcuffed the three Plaintiffs in the living room.

23. Plaintiff Crosland, who was pregnant at the time, did not have pants on, and Defendant Officers refused to allow her to get pants.

24. Defendant Officers began searching the apartment without permission or authority.

25. During the search of the apartment, Plaintiff Angela Peay came home to the apartment.

26. Defendant Officers immediately handcuffed Plaintiff Angela Peay when she walked in and sat her next to the three other handcuffed Plaintiffs.

27. All four Plaintiffs persons were searched, and no contraband or anything illegal was found.

28. No contraband or anything illegal was found by the Defendant Officers during the search of the apartment.

29. The defendant police officers transported all four plaintiffs to the 75th Precinct against their will, where the Plaintiffs were unlawfully photographed, fingerprinted and detained in a holding cell.

30. At no time relevant herein did the Plaintiffs commit a crime or violate the law in any way, nor did the police officer have an objective reason to accuse the Plaintiffs of committing a crime or violating the law in any way.

31. Nevertheless, the Plaintiffs were unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause.

32. At no point in time did the Plaintiffs resist arrest in any way.

33. While at the 75th Precinct, Defendant Officers took Plaintiffs Ashanti Crosland and Malik Caleb-Peay into interrogation rooms.

34. Plaintiffs Crosland and Caleb-Peay gave DNA voluntarily while in the interrogation rooms.

35. Plaintiff Crosland continually asked why she was being detained, and the Defendant Officers refused to tell her.

36. Plaintiff Angela Peay was released from the precinct with a Desk Appearance Ticket for unknown charges, and told to return on a specific court date.

37. Plaintiff Ashanti Crosland, Malik Caleb-Peay, and Yusuf Caleb-Peay were then transported to Kings County Central Bookings.

38. The defendant police officers provided the District Attorney's Office with the false, misleading and/or incomplete information that the Plaintiffs committed crimes.

39. On June 22, 2019, at approximately 8:00 p.m., after approximately 30 hours in unlawful custody, the Plaintiffs were arraigned in Kings County Criminal Court, and charged with crimes that the defendant officers had no basis to alleged that he committed.

40. The Plaintiffs were unlawfully charged with criminal possession of a firearm.

41. Based on the Defendant Officers false allegations, bail was set at \$7,500 for Malik Caleb-Peay, \$7,500 for Yusuf Caleb-Peay, and \$5,000 for Ashanti Crosland.

42. Plaintiff Ashanti Crosland made bail after approximately two days of being unlawfully incarcerated.

43. Plaintiffs Malik Caleb-Peay and Yusuf Caleb-Peay were unable to make bail for approximately four days, and were both sent to Rikers Island.

44. Plaintiff Malik Caleb-Peay spent approximately \$11,000 on a private criminal defense attorney, Samuel Gregory, Esq.

45. Plaintiff Angela Peay showed up on her specified Court Date for the DAT and was told the charges were dismissed prior to the Court Date.

46. On or about November 14, 2019, all charges were dismissed and sealed against Plaintiffs Ashanti Crosland, Malik Caleb-Peay, and Yusuf Caleb-Peay.

47. Plaintiff Ashanti Crosland lost her pregnancy due to stress related to the unlawful arrest and time spent in jail.

48. Some of the police officer defendants observed the violation of the Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, falsely arresting and imprisoning, denying the right to due process and a fair trial, and maliciously prosecuting of the Plaintiffs.

49. The unlawful, search, seizure, false arrest and imprisonment, denial of the right to a fair trial, and malicious prosecution of the Plaintiffs by the individually named defendants caused the Plaintiffs to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

50. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 49 with the same force and effect as if more fully set forth at length herein.

51. The individually named police officer defendants while acting in concert and within the scope of their authority, caused the Plaintiffs to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of the Plaintiffs' rights to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

52. As a result of the aforementioned conduct of defendants, the Plaintiffs sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

53. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.

54. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine the Plaintiffs and, in fact, confined the Plaintiffs, and the Plaintiffs were conscious of the confinement. In addition, the Plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.

55. As a direct and proximate result of such acts, defendants deprived the Plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

56. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

57. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

58. As a result of the aforementioned conduct of defendants, the Plaintiffs sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

59. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 58 with the same force and effect as if more fully set forth at length herein.

60. The illegal approach, pursuit, stop and search employed by defendants herein terminated the Plaintiff's freedoms of movement through means intentionally applied.

61. Defendants lacked probable cause to search the Plaintiffs.

62. As a direct and proximate result of such acts, defendants deprived the Plaintiffs of their rights under the laws of the State of New York.

63. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

64. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

65. As a result of the aforementioned conduct of defendants, the Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Violation of Plaintiff's Fifth and Fourteenth Amendment Rights

Denial of Right to Fair Trial/Due Process

66. The Plaintiff repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein

67. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

68. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

69. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

70. In withholding/creating false evidence against the Plaintiffs, and in providing/withholding information with respect thereto, defendants violated the Plaintiff's constitutional rights to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

71. As a result of the foregoing, the Plaintiffs, sustained, inter alia, loss of their rights to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of their constitutional rights.

72. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

73. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

74. As a result of the aforementioned conduct of defendants, the Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

75. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 74 with the same force and effect as if more fully set forth at length herein.

76. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to the Plaintiffs, ASHANTI CROSLAND, ANGELA PEAY, YUSUF CALEB-PEAY, and MALIK CALEB-PEAY. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the Plaintiffs

and violated the Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

77. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the Plaintiffs and violated the Plaintiff's statutory and common law rights as guaranteed the Plaintiffs by the laws and Constitution of the State of New York.

78. As a direct and proximate result of such acts, defendants deprived the Plaintiffs of their rights under the laws of the State of New York.

79. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

80. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

81. As a result of the aforementioned conduct of defendants, the Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

82. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 81 with the same force and effect as if more fully set forth at length herein.

83. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

84. As a result of the aforementioned conduct of defendants, the Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Failure to Intervene

85. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 84 with the same force and effect as if more fully set forth at length herein.

86. The defendants that did not physically touch the Plaintiffs, but were present when other officers violated the Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of the Plaintiffs, whose constitutional rights were being violated in their presence by other officers.

87. Defendants failed to intervene to prevent the unlawful conduct described herein.

88. As a result of the foregoing, the Plaintiffs liberty was restricted for an extended period of time, they were put in fear of safety, and they were humiliated and subject to other physical constraints.

89. As a direct and proximate result of such acts, defendants deprived the Plaintiffs of their rights under the laws of the State of New York.

90. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

91. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

92. As a result of the aforementioned conduct of defendants, the Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Malicious Prosecution

93. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 92 with the same force and effect as if more fully set forth at length herein.

94. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

95. Defendants commenced and continued a criminal proceeding against the Plaintiffs.

96. There was actual malice and an absence of probable cause for the criminal proceeding against the Plaintiffs and for each of the charges for which they were prosecuted.

97. The prosecution and criminal proceedings terminated in the Plaintiffs favor on the aforementioned dates.

98. The Plaintiffs were subjected to a post-arraignment deprivation of liberty sufficient to implicate the Plaintiffs' Fourth Amendment rights.

99. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

100. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

101. As a result of the aforementioned conduct of defendants, the Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

102. The Plaintiffs hereby demand trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, the Plaintiffs demand judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiffs recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
April 17, 2020

Yours, etc.



CAITLIN ROBIN, ESQ.
CAITLIN ROBIN AND ASSOCIATES PLLC
Attorney for Plaintiff
30 Broad Street Suite 702
New York, New York 10004
(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

SERGEANT DANIEL MOLINSKI, Shield No. 2065, NYPD PSA 9, 155-9 Jewel
Avenue, Queens, New York 11367

ATTORNEY'S VERIFICATION

CAITLIN ROBIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **CAITLIN ROBIN AND ASSOCIATES PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not the Plaintiffs is because the Plaintiffs do not reside in the county wherein I maintain my office.

DATED: New York, New York
April 17, 2020



CAITLIN ROBIN

